

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

-----X
DONNA CORCHO,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD OFFICER TELLI
GIRONCASTELLANO (Shield # 11469), NYPD
OFFICER MARK BUONO (Shield # 22456), NYPD
OFFICER JORGE FLORES (Shield # 07680) and NYPD
OFFICERS JANE and JOHN DOE #'s 1-12 (names and
numbers are unknown at present) and Other Unidentified
Members of the New York City Police Department,

Defendants.
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SUMMONS

Basis of Venue:
Place of Incident

Plaintiff Designates
Bronx County as the
place of trial

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
August 25, 2022

Respectfully submitted,

/s/

Sydney O'Hagan, Esq.
40 Exchange Place
Suite 1000
New York, New York 10005
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TO: CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007

NYPD OFFICERS TELLI GIRONCASTELLANO (Shield # 11469), MARK BUONO (Shield # 22456), AND JORGE FLORES (Shield # 7680), 44th Precinct, New York, NY

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

-----X
DONNA CORCHO,

Plaintiff,

**VERIFIED
COMPLAINT**

-against-

THE CITY OF NEW YORK, NYPD OFFICER TELLI
GIRONCASTELLANO (Shield # 11469), NYPD
OFFICER MARK BUONO (Shield # 22456), NYPD
OFFICER JORGE FLORES (Shield # 07680) and NYPD
OFFICERS JANE and JOHN DOE #'s 1-12 (names and
numbers are unknown at present) and Other Unidentified
Members of the New York City Police Department,

Defendants.

-----X
Plaintiff **Donna Corcho**, by her attorney, SYDNEY O'HAGAN, ESQ., as and for the Complaint
herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, the rights secured by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. Plaintiff was unlawfully arrested by the defendants. Plaintiff was deprived of her federal constitutional and state constitutional and common law rights when the individually named police officer defendants unlawfully confined plaintiff, caused the unjustifiable arrest of plaintiff, used excessive force causing physical injury, engaged in malicious prosecution and denial of a fair trial of the plaintiff.

PARTIES

2. Donna Corcho is a citizen of the United States and a resident of Bronx County, New York.

3. NYPD OFFICER TELLI GIRONCASTELLANO (Shield # 11469), MARK BUONO (Shield # 22456), and JORGE FLORES (Shield # 07680) are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
4. NYPD OFFICER TELLI GIRONCASTELLANO (Shield # 11469), MARK BUONO (Shield # 22456), and JORGE FLORES (Shield # 07680) are being sued in their individual capacity and official capacity.
5. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
6. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
7. New York Police Officers John and Jane Doe #'s 2-12 are and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
8. Police Officers John and Jane Doe # 2-12 are being sued in his/her individual capacity and official capacity.
9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
10. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the

area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

11. Plaintiff in furtherance of her State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
12. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
13. The City of New York held a 50(h) hearing examination of the Plaintiff on March 30, 2022.

STATEMENT OF FACTS

14. On March 5, 2021 at approximately 10:40 p.m. at 825 Gerard Avenue, Apt. 1A, Bronx, New York, Plaintiff Concho was inside her mother's apartment when numerous police officers from the 44th precinct, and other unknown police commands, including upon information and belief, NYPD Officer Telli Gironcastellano (Shield # 11469), Mark Buono (Shield # 22456), Jorge Flores (Shield # 07680) and NYPD Officers John and Jane Does # 1-12, and other as yet unknown police officers, at times acting in concert and at times acting independently, committed the following illegal acts against Plaintiff.
15. On March 5, 2021, at approximately 10:00 p.m., Plaintiff was at her mother's home when she got into a verbal altercation with her sister. She agreed to leave the apartment after she used the bathroom. While in the bathroom, defendant NYPD officers arrived at the apartment.
16. Upon arrival at the apartment, defendant officers asked Plaintiff to step out of the apartment. Plaintiff told them she needed to get her personal items together before leaving the apartment. In

response, defendant NYPD officers became aggressive and combative with the Plaintiff, grabbing her by the coat and around her neck to pull her out of the apartment into the hallway.

17. Defendant NYPD officers subjected Plaintiff severe physical abuse. Defendant officers punched Plaintiff in the face repeatedly, removed her wig and placed it over her face and mouth, making it difficult for her to breathe. Plaintiff felt like she was going to suffocate, and complained to officers about her inability to breathe. These complaints were ignored. Finally, defendant officers placed handcuffs tightly around Plaintiff's wrists.
18. As a result of the physical violence, Plaintiff suffered pain to her nose, face, and cheekbone. She had bruises around her arms from the handcuffs.
19. Plaintiff received medical treatment prior to her arraignment at a Lincoln Hospital, Bronx, New York.
20. At arraignment, Plaintiff was charged assaulting a police officer, among other charges. She was not charged with anything relating to her sister or other family members.
21. All charges against Plaintiff were dismissed and sealed on November 18, 2021.
22. Plaintiff was incarcerated for 24 hours in filthy and inhumane conditions. As a result of defendant officers' use of excessive force, Plaintiff suffered severe pain to her face. She continues to have aches to her facial bones where she was punched. Plaintiff also has a scar on her nose. She has sought follow-up physical and mental health treatment.

FIRST CAUSE OF ACTION

ASSAULT

23. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 22 with the same force and effect as if more fully set forth herein.

24. Defendants their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that they intended to cause her physical injury and actually caused him injury. Plaintiff was assaulted by defendant NYPD Officers Telli Gironcastellano, Mark Buono, and Jorge Flores (Shield # 15959) and/or other NYPD officers when they hit her in the face repeatedly, suffocated her with her wig, and placed handcuffs unnecessarily tightly on her wrists. These actions caused pain, bruising and scarring to her face and pain, swelling, and tingling to her fingers. Defendant NYPD officers refused to remove the wig from her mouth despite her inability to breath. Defendant NYPD officers also refused to loosen the cuffs despite the injuries they were causing to her wrists.
25. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
26. The City, as the employer of defendants is responsible for their wrongdoing under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION

FALSE ARREST AND FALSE IMPRISONMENT

27. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 26 as if fully set forth herein.
28. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

29. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
30. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

MALICIOUS PROSECUTION

31. The plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 30 with the same force and effect as if more fully set forth at length herein.
32. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York.
33. Defendants commenced and continued a criminal proceeding against Plaintiff with malice and without probable cause, caused her a serious deprivation of liberty as a result, and Plaintiff obtained a favorable termination on the fabricated charges.
34. Defendants commenced and continued a criminal proceeding against Plaintiff.
35. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which he was prosecuted because Plaintiff was charged with assault and officer, when in fact she was the victim of an assault by NYPD officers.
36. The prosecution and criminal proceedings terminated favorably to Plaintiff on November 18, 2021.
37. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate her state constitutional and tort rights.

38. The individually named Defendant Police Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FOURTH CAUSE OF ACTION

NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

39. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 38 with the same force and effect as if more fully set forth at length herein.
40. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

FIFTH CAUSE OF ACTION

FAILURE TO INTERVENE

41. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 40 with the same force and effect as if more fully set forth at length herein.
42. Defendants had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD, subjecting Plaintiff to, *inter alia*, unlawful search and seizure, detention, malicious prosecution, and excessive force.
43. Defendants failed to intervene to prevent the unlawful conduct described herein despite having had a reasonable opportunity to do so, and full knowledge of the unlawful conduct.
44. As a result of the foregoing, Plaintiff was subjected and illegal search and undue force upon her person over the course of her false arrest.

45. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
46. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF

DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

47. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
48. All of the aforementioned acts of defendants NYPD OFFICERS TELLI GIRONCASTELLANO, MARK BUONO, AND JORGE FLORES and NYPD OFFICERS JOHN and JANE DOE #1-12, their agents, servants, and employees, were carried out under the color of state law.
49. All of the aforementioned acts deprived Plaintiff of her rights, privileges, and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.
50. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.
51. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.

52. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF

FALSE ARREST UNDER 42 U.S.C. § 1983

53. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
54. As a result of the aforesaid conduct by defendants NYPD OFFICERS TELLI GIRONCASTELLANO, MARK BUONO, AND JORGE FLORES and NYPD OFFICERS JOHN and JANE DOE #1-12, Plaintiff was subjected to an illegal, improper, and false arrest by the defendants NYPD OFFICERS TELLI GIRONCASTELLANO, MARK BUONO, AND JORGE FLORES and NYPD OFFICERS JOHN and JANE DOE #1-12, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.
55. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, she was put in fear for his safety, and was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

THIRD CLAIM FOR RELIEF

DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983

56. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
57. Defendants NYPD OFFICERS TELLI GIRONCASTELLANO, MARK BUONO, AND JORGE FLORES and NYPD OFFICERS JOHN and JANE DOE #1-12 created false evidence against the plaintiff, alleging that she assaulted, menaced, or harassed officers, when in reality, they committed these acts against her.

58. Defendant NYPD OFFICERS TELLI GIRONCASTELLANO, MARK BUONO, AND JORGE FLORES and NYPD OFFICERS JOHN and JANE DOE #1-12 forwarded false evidence and false information to prosecutors in the New York County District Attorney's Office – namely, the defendants falsely informed prosecutors *inter alia*, that Plaintiff had assaulted and menaced them, when in fact, they had committed those acts against her.
59. Defendants NYPD OFFICERS TELLI GIRONCASTELLANO, MARK BUONO, AND JORGE FLORES and NYPD OFFICERS JOHN and JANE DOE #1-12 misled the prosecutors by creating false evidence against the Plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.
60. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants NYPD OFFICERS TELLI GIRONCASTELLANO, MARK BUONO, AND JORGE FLORES and NYPD OFFICERS JOHN and JANE DOE #1-12 violated Plaintiff's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.
61. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and she was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FOURTH CLAIM FOR RELIEF
FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983

62. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

63. Defendants NYPD OFFICERS TELLI GIRONCASTELLANO, MARK BUONO, AND JORGE FLORES and NYPD OFFICERS JOHN and JANE DOE #1-12 had an affirmative duty to intercede when Plaintiff's constitutional rights were being violated in defendants' presence by committing the acts of false arrest, unlawful imprisonment, excessive force, and the misrepresentation and falsification of evidence regarding the circumstances surrounding Plaintiff's arrest throughout all phases of the criminal proceedings.
64. Defendants NYPD OFFICERS TELLI GIRONCASTELLANO, MARK BUONO, AND JORGE FLORES and NYPD OFFICERS JOHN and JANE DOE #1-12 further violated Plaintiff's constitutional rights when they failed to intercede and prevent the violation or further violation of Plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.
65. As a result of the defendants' failure to intercede when Plaintiff's constitutional rights were being violated in defendants' presence, Plaintiff sustained, *inter alia*, physical and emotional injuries, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for her safety, and she was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

FIFTH CLAIM FOR RELIEF

MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

66. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
67. Defendants NYPD OFFICERS TELLI GIRONCASTELLANO, MARK BUONO, AND JORGE FLORES and NYPD OFFICERS JOHN and JANE DOE #1-12 misrepresented and falsified evidence before the New York County District Attorney, including false allegations that Plaintiff committed an assault on defendant NYPD officer when in fact, they assaulted her.

68. Defendant NYPD OFFICERS TELLI GIRONCASTELLANO, MARK BUONO, AND JORGE FLORES and NYPD OFFICERS JOHN and JANE DOE #1-12 did not make a complete and full statement of facts to the District Attorney.
69. Defendant NYPD OFFICERS TELLI GIRONCASTELLANO, MARK BUONO, AND JORGE FLORES and NYPD OFFICERS JOHN and JANE DOE #1-12 withheld exculpatory evidence from the District Attorney.
70. Defendant NYPD OFFICERS TELLI GIRONCASTELLANO, MARK BUONO, AND JORGE FLORES and NYPD OFFICERS JOHN and JANE DOE #1-12 were directly and actively involved in the initiation of criminal proceedings against plaintiff.
71. Defendants NYPD OFFICERS TELLI GIRONCASTELLANO, MARK BUONO, AND JORGE FLORES and NYPD OFFICERS JOHN and JANE DOE #1-12 lacked probable cause to initiate criminal proceedings against plaintiff.
72. Defendants NYPD OFFICERS TELLI GIRONCASTELLANO, MARK BUONO, AND JORGE FLORES and NYPD OFFICERS JOHN and JANE DOE #1-12 acted with malice in initiating criminal proceedings against plaintiff.
73. Defendants NYPD OFFICERS TELLI GIRONCASTELLANO, MARK BUONO, AND JORGE FLORES and NYPD OFFICERS JOHN and JANE DOE #1-12 were directly and actively involved in the continuation of criminal proceedings against plaintiff.
74. Defendants NYPD OFFICERS TELLI GIRONCASTELLANO, MARK BUONO, AND JORGE FLORES and NYPD OFFICERS JOHN and JANE DOE #1-12 lacked probable cause to continue criminal proceedings against plaintiff.

75. Defendants NYPD OFFICERS TELLI GIRONCASTELLANO, MARK BUONO, AND JORGE FLORES and NYPD OFFICERS JOHN and JANE DOE #1-12 acted with malice in continuing criminal proceedings against plaintiff.
76. Defendants NYPD OFFICERS TELLI GIRONCASTELLANO, MARK BUONO, AND JORGE FLORES and NYPD OFFICERS JOHN and JANE DOE #1-12 misrepresented and falsified evidence throughout all phases of the criminal proceedings.
77. Specifically, defendants NYPD OFFICERS TELLI GIRONCASTELLANO, MARK BUONO, AND JORGE FLORES and NYPD OFFICERS JOHN and JANE DOE #1-12 made the aforementioned false and misleading allegations regarding the circumstances surrounding Plaintiff's arrest.
78. Notwithstanding the perjurious and fraudulent conduct of defendants NYPD OFFICERS TELLI GIRONCASTELLANO, MARK BUONO, AND JORGE FLORES and NYPD OFFICERS JOHN and JANE DOE #1-12, the criminal proceedings were terminated in Plaintiff's favor on November 18, 2021.
79. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, she was put in fear for his safety, she suffered economic damages, and was humiliated and subjected to handcuffing and other physical restraints without probable cause.

SIXTH CLAIM FOR RELIEF

MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

80. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

81. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.
82. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:
- a. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
 - b. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
 - c. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
 - d. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and
 - e. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.
83. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the Plaintiff.

84. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the Plaintiff as alleged herein.
85. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the Plaintiff as alleged herein.
86. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the Plaintiff's constitutional rights.
87. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the Plaintiff's constitutional rights.
88. The acts complained of deprived the Plaintiff of their right:
- A. Not to be deprived of liberty without due process of law;
 - B. To be free from seizure and arrest not based upon probable cause;
 - C. Not to have summary punishment imposed upon them; and
 - D. To receive equal protection under the law.

WHEREFORE, DONNA CORCHO, Plaintiff, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
August 25, 2022

Respectfully submitted:

By: /s/
Sydney O'Hagan, Esq.
40 Exchange Place
Suite 1000
New York, New York 10005
(774) 218-3461
sydney.ohagan@gmail.com

TO:

CITY OF NEW YORK: CORPORATION COUNSEL 100 Church Street, New York, NY 10007

NYPD OFFICERS TELLI GIRONCASTELLANO (Shield # 11469), MARK BUONO (Shield # 22456), AND JORGE FLORES (Shield # 7680), 44th Precinct, New York, NY

ATTORNEY'S VERIFICATION

I, **SYDNEY O'Hagan**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **SYDNEY O'HAGAN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is out of the county.

DATED: New York, New York
August 25, 2022

/s
Sydney O'Hagan, Esq.